

STATE OF NEW YORK

9358--A

IN SENATE

March 4, 2026

Introduced by Sens. COMRIE, LANZA, SANDERS -- read twice and ordered printed, and when printed to be committed to the Committee on Cities -- reported favorably from said committee and committed to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the administrative code of the city of New York, in relation to establishing a pilot program to evaluate the impact of commuter vans accepting hails from prospective passengers in the street

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision p of section 19-502 of the administrative code
2 of the city of New York, as amended by local law number 37 for the year
3 2019, is amended to read as follows:
4 p. "Commuter van" means a commuter van service having a seating capac-
5 ity of at least nine passengers but not more than twenty passengers or
6 such greater capacity as the commission may establish by rule and carry-
7 ing passengers for hire in the city duly licensed as a commuter van by
8 the commission and not permitted to accept hails from prospective
9 passengers in the street except as authorized pursuant to subdivision c
10 of section 19-516 of this chapter. For purposes of the provisions of
11 this chapter relating to prohibitions against the operation of an unau-
12 thorized commuter van service or an unlicensed commuter van, the
13 enforcement of such prohibitions and the imposition of penalties for
14 violations of such prohibitions and to the seizure and forfeiture of
15 commuter vans, the term shall also include any common carrier of passen-
16 gers by motor vehicle not subject to licensure as a taxicab, for-hire
17 vehicle, or wheelchair accessible van and not operating as a public or
18 private bus transit service operated pursuant to a contract with the
19 city, any county within the state of New York, the state of New York or
20 any other state or local government that follows the applicable procure-
21 ment rules and regulations of such jurisdiction regardless of the seat-
22 ing capacity of any such vehicle. The commission shall submit to the
23 council the text of any proposed rule relating to the maximum capacity

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 of commuter vans at the time such proposed rule is published in the City
2 Record.

3 § 2. Paragraph 1 of subdivision a of section 19-504 of the administra-
4 tive code of the city of New York, as amended by local law number 115
5 for the year 1993, is amended to read as follows:

6 (1) A [~~taxi-cab~~] taxicab, coach, wheelchair accessible van, commuter
7 van or for-hire vehicle shall operate within the city of New York only
8 if the owner shall first have obtained from the commission a taxicab,
9 coach, wheelchair accessible van, commuter van or for-hire vehicle
10 license for such vehicle and only while such license is in full force
11 and effect. Vehicle licenses shall be issued for a term of not less
12 than one nor more than two years and shall expire on the date set forth
13 on the license unless sooner suspended or revoked by the commission. No
14 motor vehicle other than a duly licensed taxicab or commuter van where
15 authorized pursuant to subdivision c of section 19-516 of this chapter
16 shall be permitted to accept hails from passengers in the street. No
17 commuter van shall be operated within the city of New York unless it is
18 operated as part of a current, valid authorization to operate a commuter
19 van service duly issued by the commission pursuant to section 19-504.2
20 of this chapter.

21 § 3. The section heading of section 19-516 of the administrative code
22 of the city of New York, as amended by local law number 115 of the city
23 of New York for the year 1993, is amended to read as follows:

24 Acceptance of passengers by for-hire vehicles [~~and commuter vans~~].

25 § 4. Subdivision b of section 19-516 of the administrative code of the
26 city of New York, as amended by local law number 6 for the year 2017, is
27 amended and a new subdivision c is added to read as follows:

28 b. [~~No~~] Except as provided in subdivision c of this section, no commu-
29 ter van service and no person who owns, operates or drives a commuter
30 van, shall provide, permit or authorize the provision of transportation
31 service to a passenger unless such service to a passenger is on the
32 basis of a telephone contract or other prearrangement. Where a violation
33 of this subdivision has been committed by a driver of a commuter van,
34 the commuter van service and the owner of such vehicle shall also be
35 liable for a violation of this subdivision.

36 c. The commission shall establish a pilot program to evaluate the
37 impact of commuter vans accepting street hails. Until June thirtieth,
38 two thousand thirty commuter vans duly licensed by the commission to
39 carry passengers for hire are authorized to accept hails from prospec-
40 tive passengers in the streets of the city of New York within Brooklyn
41 community district five, Brooklyn community district nine, Brooklyn
42 community district sixteen, and Brooklyn community district seventeen,
43 provided that such authorization shall prohibit the pick up of passen-
44 gers by street hail at airports or in such other area as the commission
45 shall by rule prohibit. No later than February first, two thousand twen-
46 ty-eight and annually thereafter until the completion of the pilot
47 program established pursuant to this subdivision, the commission shall
48 submit a report to the mayor, speaker of the council, governor, the
49 temporary president of the senate, and the speaker of the assembly,
50 evaluating the pilot program with an analysis of the impact of commuter
51 vans accepting hails from prospective passengers in the streets and any
52 recommendations of the commission regarding the authorization of commu-
53 ter vans to accept hails from prospective passengers in the streets of
54 the city of New York.

55 § 5. This act shall take effect on the ninetieth day after it shall
56 have become a law and shall expire and be deemed repealed June 30, 2030.